

TENTATIVE RULING

Eduardo Calderon Meza v. D&M Carriers, LLC dba FREYMILLER, et al.; 24CV003526

**Motion: Defendant D&M Carriers’ Motion to Strike Plaintiff’s Notice of Errata re:
Location of Incident of Plaintiff’s Complaint for Damages**

Defendant D&M Carriers, LLC (“Defendant”) moves pursuant to Code of Civil Procedure section 436, to strike Plaintiff’s Notice of Errata filed on April 28, 2026, as improper.

The Motion is GRANTED. Because Defendant has answered, Plaintiff must make the amendment with leave of court. (Code of Civ. Proc. §472.) Plaintiff may file a motion to amend the complaint to correct the alleged location of the injury. The court notes that California law provides wide discretion to permit amendment of the pleadings and that California law generally favors permitting amendment of the pleadings. (Code of Civ. Proc. §473(a)(1); see *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.)

Defendant to prepare the court’s order consistent with the tentative ruling.